STANDATA interpretation 23-BCI-022

Building

Energy efficiency exemptions for buildings

Date Issued: May 2025

Purpose

To assist in identifying certain types and uses of buildings, such as buildings constructed to shelter equipment which has been established to be exempt from Section 9.36., “Energy Efficiency,” of the National Building Code – 2023 Alberta Edition (NBC(AE)) and the National Energy Code of Canada for Buildings 2020 (NECB).

Discussion

Section 9.36. and the NECB are the currently enforced energy efficiency requirements for buildings, developed by the National Research Council of Canada as part of the commitment to improve the energy efficiency of buildings and reduce greenhouse gas emissions. Section 9.36. and the NECB cover a wide range of building components and systems, including building envelope, electrical, and mechanical systems.

Some exemptions are permitted in both Section 9.36. or the NECB regardless of the occupancy classification of the building. The application of an exemption is based on use, occupancy, and specific building types and is determined on a case-by-case basis. When requested, the designer must provide the authority having jurisdiction (AHJ) sufficient information including references to the energy code indicating why a building may be exempted.

The type or intended use of some buildings may be such that compliance with Section 9.36. or NECB requirements would be impractical.

Sentence 2.2.1.1.(2) of Division C of the NECB permits the AHJ to review such special cases and to permit exemptions.

Sentence 9.36.1.3.(7) of the NBC(AE) provides for exemptions where the building is not required to be a conditioned space.

Code References

NECB 2020 Division A and NBC(AE) 1.4.1.2.

1.4.1.2. Defined Terms
Conditioned space means any space within a *building*, the temperature of which is controlled to limit variation in response to the exterior ambient temperature by the provision, either directly or indirectly, of heating or cooling over substantial portions of the year.

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NECB 2020 Division C, Sentence 2.2.1.1.(2)

2.2.1.1. Conformance with Administrative Requirements
2) The *authority having jurisdiction* may exempt a *building* or part thereof from some or all of the requirements of this Code where it can be shown that the nature or duration of the *occupancy* makes it impractical to apply them. (See Note A-2.2.1.1.(2).)

Sentence 9.36.1.3.(7)

9.36.1.3. Compliance and Application
7) *Buildings* or portions of *buildings* that are not required to be *conditioned spaces* are exempted from the requirements of this Section. (See Note A-9.36.1.3.(7).) (See also Article 9.25.2.1.)

Application

This interpretation applies to industrial occupancies not intended to be normally occupied by persons or sheltering equipment, and specific building types to which it would be impractical to comply with energy efficiency requirements.

This interpretation is intended to provide guidance but may not be applicable to every possible scenario. For irregular or unique cases, designers shall contact the AHJ.

Interpretation

The following are exempt from mandatory compliance with Section 9.36. and the NECB:

1. Industrial occupancy buildings not normally occupied by persons (no offices, no washrooms, etc.). These buildings are intended for storage or to shelter equipment, and access is limited to workers who occasionally enter the building to perform specific short duration tasks (such as maintaining or servicing of equipment).

   Equipment could include, but is not limited to: compressors, pumps, heaters, boilers, turbines, air compressors, separators, treaters, dehydrators, chemical packages, refrigeration, deluge control systems, fire water pumps, electrical substations, power distribution, instrumentation packages, motor control centers (MCC), variable frequency drive (VFD) units, and pumping equipment.

2. Tents and air-, cable-, and frame-supported membrane structures.

This INTERPRETATION is applicable throughout the Province of Alberta.

Unless stated otherwise, all Code references in this STANDATA are to Division B of the National Building Code – 2023 Alberta Edition

Issued by the Provincial Building Administrator

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